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IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

CRM-M-42933-2019 (O&M)
Date of decision 24.12.2025

KAMLESH SHARMA

..... PETITIONER

VERSUS

STATE OF PUNJAB AND ANOTHER

.....RESPONDENTS

CORAM: HON'BLE MS. JUSTICE SHALINI SINGH NAGPAL

Present: Mr. Viraj Gandhi, Advocate and
Mr. Harit Narang, Advocate
for the petitioner.

Mr. Hardeep Singh Wadhwa, DAG Punjab.

SHALINI SINGH NAGPAL J.

*****

1. Kamlesh Sharma, accused in criminal case arising out of FIR No.02 dated 24.01.2012 under Sections 406 and 498-A Indian Penal Code, Police Station NRI Jalandhar, District Jalandhar, has filed this petition under Section 482 Cr.P.C. for quashing order dated 11.03.2019 of learned Chief Judicial Magistrate (NRI Cases), Jalandhar, declaring her a "proclaimed offender".

2. Learned counsel for the petitioner, *inter alia*, submits that pursuant to a matrimonial dispute between son of the petitioner and complainant, FIR No.02 dated 24.01.2012 was registered against the petitioner and other family members. Petitioner was allowed bail and she appeared during the trial. She filed a petition for quashing of the FIR and vide order dated 16.02.2015, this Court stayed the proceedings in the trial. On 02.11.2018, the quashing petition was dismissed for non-prosecution.

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Soon thereafter, on 19.11.2018, application for restoration of the petition was filed and notice thereon was issued but on account of COVID-19, no effective proceedings could take place. There was no stay operating before learned trial Court and petitioner was declared a proclaimed offender on 11.03.2019. He further submits that in the first instance, notice issued to the petitioner was received back unserved as she had gone abroad and even the non-bailable warrants were unexecuted for the same reason. No efforts were made to summon the petitioner through diplomatic process and proclamation under Section 82 Cr.P.C. against her was liable to be quashed on this sole ground. He further submits that learned CJM, (NRI Cases), Jalandhar ordered service through proclamation under Section 82 Cr.P.C. on 28.01.2019 and issued the proclamation for 07.02.2019 without adhering to the mandate of Section 82 Cr.P.C. The proclamation issued on 28.01.2019 for 07.02.2019 was not legal as the period was less than the prescribed period of 30 days. After the proclamation was received back duly effected on 07.02.2019, the Court adjourned the case to 11.03.2019 which too was not proper and did not meet the mandate of Section 82 Cr.P.C. Order dated 11.03.2019 was thus, liable to be quashed.

3. Notice of Motion.

4. Mr. Hardeep Singh Wadhwa, DAG Punjab, accepts notice on behalf of Respondent No.1-State. He submits that petitioner, who was on bail, failed to put in appearance after vacation of stay order by this Court and was rightly declared proclaimed offender, as per provisions of Section 82 Cr.P.C. Supporting the order of learned trial Court dated 11.03.2019, he prayed for dismissal of the petition.

5. Section 82 Cr.P.C. which provides for publication of proclamation against a person absconding is reproduced hereunder for the

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facility of reference:-

> *—(1) If any Court has reason to believe (whether after taking evidence or not) that any person against whom a warrant has been issued by it has absconded or is concealing himself so that such warrant cannot be executed, such Court may publish a written proclamation requiring him to appear at a specified place and at a specified time not less than thirty days from the date of publishing such proclamation.*
>
> *(2) The proclamation shall be published as follows:-*
>
> *(i) (a) it shall be publicly read in some conspicuous place of the town or village in which such person ordinarily resides;*
>
> *(b) it shall be affixed to some conspicuous part of the house or homestead in which such person ordinarily resides or to some conspicuous place of such town or village;*
>
> *(c) a copy thereof shall be affixed to some conspicuous part of the Court-house;*
>
> *(ii) the Court may also, if it thinks fit, direct a copy of the proclamation to be published in a daily newspaper circulating in the place in which such person ordinarily resides.*
>
> *(3) A statement in writing by the Court issuing the proclamation to the effect that the proclamation was duly published on a specified day, in the manner specified in clause (i) of sub-section (2), shall be conclusive evidence that the requirements of this section have been complied with, and that the proclamation was published on such day. 50 1*
>
> *[(4) Where a proclamation published under sub-section (1) is in respect of a person accused of an offence punishable under*

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section 302, 304, 364, 367, 382, 392, 393, 394, 395, 396, 397, 398, 399, 400, 402, 436, 449, 459 or 460 of the Indian Penal Code (45 of 1860), and such person fails to appear at the specified place and time required by the proclamation, the Court may, after making such inquiry as it thinks fit, pronounce him a proclaimed offender and make a declaration to that effect.

(5) The provisions of sub-sections (2) and (3) shall apply to a declaration made by the Court under sub-section (4) as they apply to the proclamation published under sub-section (1).]

6. A co-ordinate Bench of this Court in **CRM-M-41715-2021 titled "Anita Sharma Vs. State of Punjab", date of decision 26.03.2021**, has summarized the essential requirements of Section 82 Cr.P.C. as under:-

*"(i) Prior issuance of warrant of arrest by the Court is sine qua non for issuance and publication of the proclamation and the Court has to first issue warrant of arrest against the person concerned. (See **Rohit Kumar Vs. State of Delhi**: 2008 Crl. J. 2561).*

*(ii) There must be a report before the Court that the person against whom warrant was issued had absconded or had been concealing himself so that the warrant of arrest could not be executed against him. However, the Court is not bound to take evidence in this regard before issuing a Proclamation under Section 82 (1) of the Cr.P.C.. (See **Rohit Kumar Vs. State of Delhi**: 2008 Crl. J. 2561).*

(iii) The Court cannot issue the Proclamation as a matter of course because the Police is asking for it. The Court must be

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prima facie satisfied that the person has absconded or is concealing himself so that the warrant of arrest, previously issued, cannot be executed, despite reasonable diligence. (See ***Bishundayal Mahton and others Vs. Emperor****:*

AIR 1943 Patna 366 and ***Devender Singh Negi Vs. State of U.P****.: 1994 Crl LJ (Allahabad HC) 1783).*

(iv) The requisite date and place for appearance must be specified in the proclamation requiring such person to appear on such date at the specified place.

Such date must not be less than 30 clear days from the date of issuance an publication of the proclamation. (See ***Gurappa Gugal and others Vs. State of Mysore*** *1969 CriLJ 826 and* ***Shokat Ali Vs. State of Haryna****: 2020(2) RCR (Criminal)*

339).

(V) Where the period between issuance and publication of the proclamation and the specified date of hearing is less than thirty days, the accused cannot be

4 of 8 declared a proclaimed person/offender and the proclamation has to be issued and published again. (See ***Dilbagh Singh Vs. State of Punjab (P&II)****:*

2015 (8) R.C.R. (criminal) 166 and ***Ashok Kumar Vs. State of Haryana and another*** *: 2013 (4) RCR (Criminal) 550)*

(vi) The Proclamation has to be published in the manner laid down in Section 82 (2) of the Cr.P.C.. For publication, the proclamation has to be first publicly read in some conspicuous place of the town or village in which the accused ordinarily resides; then the same has to be affixed to some conspicuous

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part of the house or homestead in which the accused ordinarily resides or to some conspicuous place of such town or village and thereafter a copy of the proclamation has to be affixed to some conspicuous part of the Court-house. The three sub-clauses (a)-(c) in Section 82 (2)(i) of the Cr.P.C. are conjunctive and not disjunctive, which means that there would be no valid publication of the proclamation unless all the three modes of publication are proved. (See ***Pawan Kumar Gupta Vs. The State of W.B****.: 1973 CriLJ 1368). Where the Court so orders a copy of the proclamation has to be additionally published in a daily newspaper circulating in the place in which the accused ordinarily resides. Advisably, proclamation has to be issued with four copies so that one each of the three copies of the proclamation may be affixed to some conspicuous part of the house or homestead in which the accused ordinarily resides, to some conspicuous place of such town or village and to some conspicuous part of the Court-*

house and report regarding publication may be made on the fourth copy of the proclamation. Additional copy will be required where the proclamation is also required to be published in the newspaper.

(vii) Statement of the serving officer has to be recorded by the Court as to the date and mode of publication of the proclamation. (See ***Birad Dan Vs. State****: 1958 CriLJ 965).*

viii) The Court issuing the proclamation has to make a statement in writing in its order that the proclamation was duly published on a specified day in a manner specified in Section

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*82(2)(i) of the Cr.P.C.. Such statement in writing by the Court is declared to be conclusive evidence that the requirements of Section 82 have been complied with and that the proclamation was published on such day. (See **Birad Dan Vs. State**: 1958 CriLJ 965).*

*(xi) The conditions specified in Section 82(2) of the Cr.P.C. for the publication of a Proclamation against an absconder are mandatory. Any non-compliance therewith cannot be cured as an 'irregularity' and renders the Proclamation and proceedings subsequent thereto a nullity. (See **Devendra Singh Negi alias Debu Vs. State of U.P**. and another 1994 CriLJ 1783 and **Pal Singh Vs. The State**: 1955 CriLJ 318)".*

7. Record summoned from the trial Court perused. Petitioner, who was facing trial in the Court of learned CJM (NRI) cases, had been appearing before the trial Court. She filed CRM-M-36035-2014 in this Court for quashing of the FIR. Vide order dated 24.09.2015, proceedings before the trial Court were stayed and the case before learned CJM remained pending awaiting further orders of this Court. On 21.07.2018, in view of directions of Hon'ble Supreme Court in **Asian Resurfacing of Road Agency Pvt. Ltd. And Anr Vs. CBI Appeal No. 1375-1376 of 2013 dated 28.03.2018,** proceedings in the trial were revived and notice was issued to the petitioner which was received back unserved with the report that she had gone abroad.

8. A Coordinate Bench of this Court in CRM-M-6246-2017 titled "**Sucha Singh Vs. State of Punjab**", has observed as under:

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"A person cannot be said to be "abscond" or "evade" the execution of warrant when he had gone to a distant place before the issue of the warrant. Dependence can be made on the judicial dictum rendered in the case of "M.S.R. Gundappa v. State of Karnataka" (1977 Cr LJ NOC 187), wherein it was held that a person who had gone abroad even before the issue of the warrant of arrest cannot be said to be absconding or concealing himself with the intention to disrupt the execution of that warrant."

9. Order dated 11.03.2019 is liable to be set aside for violation of Section 82(1) Cr.P.C. as well.

10. In **Dilbagh Singh @ Sonu Vs. State of Punjab CRM-M-4100-2015, date of decision 05.05.2015,** it was observed as under:

"In order to ensure that an accused should have a fair opportunity to appear, 30 days clear notice is necessary and the proclamation should be published in the manner provided by law. In the instant case, proclamation of the petitioner was issued on 20.08.2014 for 23.08.2014 and vide impugned order dated 25.09.2014 petitioner was declared proclaimed offender. It is apparent on the face of record that clear notice of 30 days as mandated under Section 82 Cr.P.C. has not been given to the petitioner and the procedure for publication of proclamation has also not been followed. Besides that, there is nothing on record to show that provisions of sub-section 2(i) of Section 82 Cr.P.C. have been complied with. As per these provisions à notice of proclamation is required to be read publicly in some

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conspicuous place of the town or village in which such person ordinarily resides. It is also required to be affixed to some conspicuous part of the house or homestead in which such person ordinarily resides or to some conspicuous place of such town or village. A copy of the notice is also required to be affixed to some conspicuous part of the Court-house. Thus, petitioner has been wrongly declared proclaimed offender vide impugned order without following the procedure of law.

11. Similarly in **CRM-M-1866-2017 titled 'Avtar Singh Vs. State of Punjab and Another'** a Coordinate Bench of this Court observed as under:-

"The above quoted provision is clear that through the proclamation made prior to declaration of a person as a proclaimed offender, he should be given not less than thirty days from the date of its proclamation to appear at a specified place and a specified time.

In the case in hand, thirty days were not given to the petitioner to appear before the Trial Court as the proclamation was made on 13.05.2011 requiring him to appear before the Trial Court on 14.05.2011. Thus, the proclamation and the subsequent order dated 03.09.2011 (Annexure P-2) declaring the petitioner to be a proclaimed offender do not confirm with the mandate of Section 81(1) of the Code".

12. Order dated 28.01.2019 of learned CJM, (NRI Cases) Jalandhar shows that proclamation under Section 82 Cr.P.C. was issued for 07.02.2019 and statement of serving official was recorded as under:-

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> *"Stated that I have been posted at P.S. NRI Jalandhar. A proclamation notice in respect of Kamlesh Sharma s/o Late Sh. Dwarka Dass Sharma, House no. 17, Sector 17A, Sonagiri Bhopal, was received by me and service to the effect has been made as per procedure. One copy of this notice was affixed on the door of house of accused. One copy has been affixed at general place of village and usual proclamation was done in the village. One copy of proclamation notice has been affixed on notice board of the Court."*

13. On 07.02.2019, petitioner did not put in appearance and the case was adjourned to 11.03.2019. Once the proclamation was issued for 07.02.2019, the case could not have been adjourned again to 11.03.2019 on the pretext that period of 30 days had not elapsed since the issuance of proclamation. The date of appearance in the proclamation being 07.02.2019, proceedings ought to have been taken on 07.02.2019 and the proclamation was required to be reissued. Adjournment of the case from 07.02.2019 to 11.03.2019 for completing the period of 30 days cannot be regarded as sufficient compliance of the provisions of Section 82(1) of the Cr.P.C. Thus, in view of ratio laid down by this Court in **Ashok Kumar Vs. State of Haryana and Another.2013 (4) RCR (Criminal) 550, Navneet Sharma Vs. State of Punjab and Others, 2024 NCPHHC 10973 and Amandip Singh Vs. State of Punjab, CRM-M No.560 of 2021, date of decision 08.01.2021,** it is evident that the trial Court has failed to comply with the mandate of Section 82(1) of Cr.P.C.

14. As per Section 82(2)(i)(a) Cr.P.C., notice of proclamation is to be publicly read in some conspicuous place of the town or village in which such person ordinarily resides. It also required to be affixed in some

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conspicuous part of the house or homestead in which such person ordinarily resides or to some conspicuous place of such town or village besides affixation on the Court-house.

15. It is evident from the statement of HC Makhan Singh that the proclamation was not publicly read over in some place of town or village where petitioner resided. The three sub-clauses (a)-(c) in Section 82(2)(i) Cr.P.C. are conjunctive and not disjunctive, which means that there would be no valid publication of the proclamation unless all the three modes of publication are proved. All three sub-clauses are mandatory and any violation whereof entails quashing of the order declaring an accused, a proclaimed person/offender.

16. Consequently, impugned order of learned Chief Judicial Magistrate (NRI Cases), Jalandhar dated 11.03.2019 declaring the petitioner a "proclaimed offender" cannot be sustained in law and is hereby set aside and quashed, subject to payment of costs of Rs.80,000/- to be deposited in Poor Patient Welfare Fund, Postgraduate Institute of Medical Education and Research (PGIMER), Chandigarh. Petitioner is directed to surrender before learned Chief Judicial Magistrate (NRI Cases), Jalandhar, within a period of one month from today and move an application for regular bail. Learned trial Court shall admit the petitioner to regular bail, on such terms and conditions, as it deems fit.

17. It is, however, clarified that in case petitioner fails to appear before learned trial Court within the stipulated time or fails to deposit the costs, the petition shall be deemed to be dismissed.

18. The petition is allowed, on the terms above.

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19. Pending miscellaneous applications, if any, stand disposed of.

(SHALINI SINGH NAGPAL)
JUDGE

24.12.2025
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Whether Speaking/Reasoned	:	Yes/No
Whether Reportable	:	Yes/No

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